

CHAPTER - XIII

OWNERSHIP

INTRODUCTION:

Ownership is a complex juristic concept, which has its origin in the ancient Roman law. Perhaps of all the rights, right to ownership is the most important right. The earlier legal systems did not recognize the distinction between ownership and possession.

It was with the advancement of civilization that the two were considered as separate and distinct terms.

In the Roman Law, ownership and possession were respectively termed as 'dominium' and 'possessio'.

The term 'dominium' denote absolute right a thing while 'possessio' implied only physical control over a thing. Romans attached greater importance to ownership rather than possession because in their view having absolute right over a thing was much more important than merely having physical control over it.

In the ancient and medieval English Law also, the concept of ownership developed much later than possession. The term 'ownership' was used in English Law, for the first time in 1583, when it was distinguished from possession.

DEFINITION OF OWNERSHIP:

Jurists have defined ownership in different way. All of them, however, accept that the right of ownership is most complete or supreme right that can be exercised over anything.

According to HIBBERT, ownership consists of FOUR kinds of rights:

- (1) Right to use of a thing;
- (2) Right to exclude others from using the thing;

(3) Disposing of the thing; and

(4) Right to destroy it.

Thus, **Hibbert** suggests that no one can have an absolute ownership in land, as land is not capable of being destroyed. One can have an estate in it. An estate means the legal interest of a party in land measured by duration, which entitles the party to use the land for an indefinite period.

AUSTIN'S DEFINITION:

Austin defines ownership "as a right which avails against everyone who is subject to the law conferring the right to put thing to user of indefinite nature."

He further says that ownership is a "right indefinite in point of user, unrestricted in point of disposition and unlimited in point of duration".

It is a **right of rem**, which is available against the world at large. The **three attributes of ownership** namely, indefinite user, unrestricted disposition and unlimited duration may be analyzed thus—

1. INDEFINITE USER:

This implies that the owner of thing is the free to use or even misuse the thing in the manner he likes. The use of the word '**indefinite**' has a special significance because the use of land by the owner can be restricted by agreements or by operation of law. These restrictions may include—

(i)

The owner of a thing cannot be allowed to use the thing in a manner, which is injurious to others. This is expressed by the maxim, 'so use your property as not to injure your neighbors.'